

FEDERAL MARITIME COMMISSION

DOCKET NO. 20-04

DIP SHIPPING COMPANY, LLC -- REVOCATION OF OCEAN TRANSPORTATION INTERMEDIARY LICENSE NO. 018752

VERIFIED STATEMENT OF

CLIFFORD R. JOHNSON

1. My name is Clifford R. Johnson and I am currently Special Assistant at the Bureau of Certification and Licensing (BCL) of the Federal Maritime Commission (Commission). Until May 26, 2020, I was the Acting Director of BCL. My office address is 800 North Capitol Street, N.W., Suite 970, Washington, D.C. 20573. I have been employed by the Commission for the past 4 years and, until recently, was in my position of Acting Director for the past 5 months. My previous positions in BCL include Deputy Director and Special Assistant to the Director. I have personal knowledge of the facts stated herein and could and would competently testify herein.
2. In my capacity as the Acting Director, Deputy Director, and Special Assistant of BCL, I received, investigated, reviewed and either recommended for approval or denied applications of entities requesting to be licensed as Ocean Transportation Intermediaries (OTIs) under authority delegated by the Commission pursuant to 46 C.F.R. § 501.26. During my tenure in these positions, I have reviewed over 2,500 new and amended license applications in addition to numerous cancellations and revocations.
3. Records maintained by BCL indicate that Dip Shipping Company, LLC (Dip Shipping) is a Louisiana limited liability company, organized in 2004, with principal offices located at 2601 Marietta Avenue, Kenner, Louisiana 70062.
4. According to BCL records, Dip Shipping has been licensed to operate as an OTI pursuant to FMC license no. 018752 since March 2004. *See* BOE Exhibit 7, FMC193 – FMC194.
5. Mr. Roberto Dip was the president and Qualifying Individual (QI) of Dip Shipping from November 17, 2003 until approximately July 16, 2019. Ms. Margie Guadalupe Dip has been a corporate officer with the title of Manager of Dip Shipping from 2004 until the present. *See* BOE Exhibit 2, FMC114 – FMC128.

6. On or about October 2, 2018, Mr. Roberto Dip entered into a signed agreement pleading guilty to a charge of participating in a conspiracy with other individuals and companies providing ocean transportation intermediary services for the purpose of fixing prices for those services and having the effect of eliminating or suppressing competition, in violation of the Sherman Antitrust Act, 15 U.S.C. § 1. *See* BOE Exhibit 15, FMC237 – FMC251.
7. I learned of Mr. Dip's guilty plea regarding his role in the price fixing scheme on or about November 30, 2018 through a press release issued by the U.S. Department of Justice (DOJ). After discussion with Ms. Sandra Kusumoto, the Director of BCL at that time, a letter dated December 13, 2018 was sent to Mr. Dip requesting that he provide the Commission with information and documents relating to the federal criminal matter. A copy of this press release is included as Attachment A.
8. On or about January 7, 2019, BCL received an email from Mr. Dip acknowledging BCL's letter and indicating that he was unaware of the requirement to notify the Commission of his guilty plea. Mr. Dip also inquired if a change in the management of Dip Shipping would prevent the revocation of the company's OTI license. *See* BOE Exhibit 4, FMC132 – FMC134.
9. On or about January 29, 2019, I participated in a telephone conference between representatives of the Commission, Mr. Dip, as well as counsel for Mr. Dip, Mr. Peter Quinter, to discuss the responsive documents and the potential for revocation of Dip Shipping's OTI license. No guidance was provided at that time regarding the disposition of Dip Shipping's license.
10. On or about February 26, 2019, I participated in a telephone conference between representatives of the Commission and Carsten Reichel, an attorney with DOJ's Antitrust Division, regarding Dip Shipping. During this discussion, in response to Mr. Reichel's inquiry as to the criteria for OTI licensing, I provided an explanation that licensing was based on character and experience of the applicant. Mr. Reichel confirmed that Mr. Dip had pleaded guilty to price fixing and sentencing would follow later in the year.
11. On or about April 2, 2019, Mr. Quinter provided responsive documentation to BCL on behalf of Mr. Roberto Dip and Dip Shipping. This included information from the Secretary of State of Florida showing that Mr. Roberto Dip was no longer an officer of Dip Shipping and that Ms. Margie G. Dip and Ms. Maria D. Dip were now the only managers of the company. Mr. Quinter also indicated Dip Shipping would like to propose Ms. Margie G. Dip as the replacement QI for the company's OTI license. *See* BOE Exhibit 5, FMC135 – FMC137.
12. On April 9, 2019, I participated in a meeting between representatives of the Commission and Mr. Peter Quinter at the Commission's headquarters office in Washington, D.C. Mr. Quinter was advised that Mr. Roberto Dip's involvement with Dip Shipping, in any capacity including as an owner, was problematic for the Commission. We also indicated that the Commission would consider an application proposing Ms. Margie Dip as the

replacement QI and such an application should be submitted after the sentencing of Mr. Roberto Dip.

13. On or about June 25, 2019, a Judgment was issued by the United States District Court for the Southern District of Florida imposing a prison sentence of 18 months and a criminal monetary penalty of \$20,000.00 against Mr. Roberto Dip for his participation in a price fixing conspiracy in violation of 15 U.S.C. § 1. *See* BOE Exhibit 15, FMC252 – FMC258.
14. On or about July 16, 2019, Dip Shipping submitted a Form FMC-18 application proposing Ms. Margie Dip as the replacement QI. The application was assigned to a BCL analyst who conducted a standard review process. *See* BOE Exhibit 6, FMC138 – FMC192.
15. According to supporting documentation submitted with Dip Shipping’s replacement QI application, on or about August 12, 2019, Mr. Roberto Dip transferred the entirety of his ownership in Dip Shipping to Ms. Margie Guadalupe Dip and Ms. Maria Dolores Dip, each of whom currently holds a 50 percent share in the company. Prior to this transfer, Ms. Margie Dip and Ms. Maria Dip each owned a 10 percent interest in Dip Shipping. *See* BOE Exhibit 6, FMC191 – FMC192.
16. On September 3, 2019, Ms. Margie Dip was approved as the sole QI for Dip Shipping. *See* BOE Exhibit 8, FMC195 – FMC196.
17. On September 17, 2019, the Commission learned through a DOJ press release issued on that date, that Dip Shipping was charged with and agreed to plead guilty to an antitrust violation for its role in a conspiracy to fix prices for ocean transportation services. *See* BOE Exhibit 9, FMC197 – FMC199; BOE Exhibit 10, FMC200 – FMC208.
18. Upon further investigation, I learned that on or about October 25, 2019, Dip Shipping, through its representative, Ms. Margie Guadalupe Dip, entered into a signed agreement pleading guilty to a charge of participating in a price fixing conspiracy in the United States and elsewhere from September 2010 through March 2015, in violation of 15 U.S.C. § 1. *See* BOE Exhibit 12, FMC211 – FMC231.
19. I likewise learned that, on or about December 8, 2019, an Amended Judgment was issued by the United States District Court for the Southern District of Florida imposing a criminal monetary penalty of \$488,250.00 against Dip Shipping for its participation in a price fixing conspiracy, in violation of 15 U.S.C. § 1. *See* BOE Exhibit 13, FMC232 – FMC236.
20. As an applicant for approval of a replacement QI, Dip Shipping was obligated to disclose any pending criminal charges, discussions with DOJ regarding its corporate liability, as well as upon entry of its guilty plea with the U.S. District Court in accordance with 46 C.F.R. §§ 515.12(e); 515.13(a), (b), (c); 515.16(a)(3); and 515.20(e).
21. At no time on or after September 17, 2019, did Dip Shipping notify the Commission that the company was charged with a felony in the United States District Court for the Southern District of Florida as a corporate defendant.

22. At no time on or after September 17, 2019, did Dip Shipping notify the Commission that the company pleaded guilty to a felony in the United States District Court for the Southern District of Florida as a corporate defendant.
23. At no time on or after September 17, 2019, did Dip Shipping notify the Commission that the United States District Court for the Southern District of Florida entered judgment against Dip Shipping as a corporate defendant imposing a criminal monetary penalty for violation of 15 U.S.C. § 1.
24. As a result of Dip Shipping's plea agreement and conviction for criminal violation of U.S. antitrust laws, its failure to inform the Commission of its pending criminal charges, as well as entry of its guilty plea as a corporate defendant, I issued to Dip Shipping a Notice of Intent to Revoke its OTI license on February 19, 2020. See BOE Exhibit 1, FMC100 – FMC113.

I certify, under the penalty of perjury, that the foregoing is true and correct to the best of my knowledge, information and belief.

CLIFFORD
JOHNSON

Digitally signed by CLIFFORD
JOHNSON
Date: 2020.06.09 08:01:53 -04'00'

Clifford R. Johnson, Special Assistant
Bureau of Certification and Licensing

Executed this 9th day of June, 2020

Attachment A: DOJ press release regarding Roberto Dip



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FOR IMMEDIATE RELEASE

Friday, November 30, 2018

Two Freight Forwarding Executives Plead Guilty To Fixing Prices

Roberto Dip and Jason Handal pleaded guilty today in Miami, Florida, for their roles in orchestrating a nationwide conspiracy to fix prices for international freight forwarding services, marking the first convictions in this investigation, the Department of Justice announced.

Dip and Handal were charged in the Eastern District of Louisiana on October 16, 2018, and the case was later transferred to the Southern District of Florida, where Dip and Handal entered their guilty pleas today. Dip, a citizen of Honduras, is the president and CEO of a Louisiana-based freight forwarding company, and Handal, a U.S. citizen, is the company’s manager. The pair conspired with their competitors to fix the prices for freight forwarding services provided in the United States and elsewhere from at least as early as September 2010 until at least March 2015. In addition to their guilty pleas, Dip and Handal have agreed to pay a criminal fine and cooperate with the ongoing investigation.

“Through these plea agreements, the Antitrust Division and the FBI hold accountable two senior executives who conspired to cheat American customers,” said Assistant Attorney General Makan Delrahim of the Department of Justice’s Antitrust Division. “The Antitrust Division will continue to work with its law enforcement partners to prosecute individuals who target consumers in vital international industries.”

Freight forwarders arrange for and manage the shipment of goods, including by receiving, packaging, and otherwise preparing cargo destined for international ocean shipment.

The ongoing investigation into price fixing in the international freight forwarding industry is being conducted by the Antitrust Division’s Washington Criminal I Section, the FBI’s International Corruption Unit, and the FBI’s New Orleans Division. Anyone with information in connection with this investigation is urged to call the Antitrust Division’s Washington Criminal I Section at 202-307-6694, visit www.justice.gov/atr/contact/newcase.html or call the FBI tip line at 415-553-7400.

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